

ASSIGNMENT OF RETAINER AGREEMENT

It is hereby mutually agreed that the retainer agreement for legal services entered into between the TOWN OF NORTH CASTLE, a municipality in Westchester County, and STEPHENS, BARONI, REILLY & LEWIS, LLP effective January 1, 2024 for a period of one year is hereby assigned to ABRAMS FENSTERMAN, LLP effective September 1, 2024.

In agreeing to such assignment, the Town of North Castle agrees to pay to the assignee the amounts of money specified in the original agreement. It is also agreed by the assignee that the conditions of the original agreement will be carried out in exactly the manner specified therein and in accordance with the intentions of the Town of North Castle at the time the agreement was entered into for the amounts of money specified.

TOWN OF NORTH CASTLE

By: Joseph A. Rende
Joseph A. Rende, Supervisor

STEPHENS, BARONI, REILLY & LEWIS, LLP

By: Roland A. Baroni, Jr.
Roland A. Baroni, Jr. (Assignor)

ABRAMS FENSTERMAN, LLP

By: _____

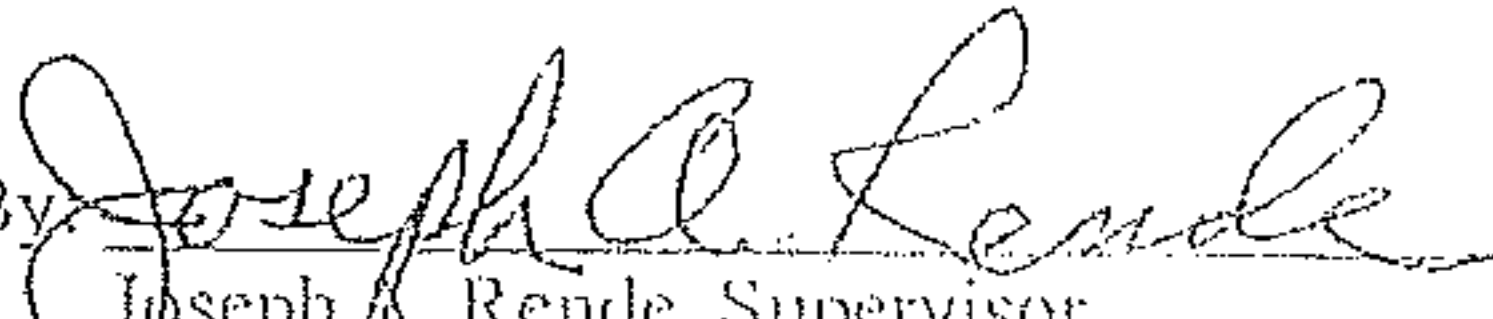
(Assignee)

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TOWN OF NORTH CASTLE

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Joseph A. Rende, Supervisor

STEPHENS, BARONI, REILLY & LEWIS, LLP

By: 
Roland A. Baroni, Jr. (Assignor)

ABRAMS FENSTERMAN, LLP

By: 
Robert A. Spolizansky, Partner (Assignee)

STEPHENS, BARONI, REILLY & LEWIS, LLP

ATTORNEYS AND COUNSELORS AT LAW

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STEPHEN R. LEWIS slewis@sbrllaw.com

COUNSEL

GERALD D. REILLY greilly@sbrllaw.com

SERVICE NOT ACCEPTED
BY FAX OR EMAIL.

January 1, 2024

Supervisor Joseph Rende
Town of North Castle
15 Bedford Road
Armonk, New York 10504

Re: Legal Services for 2024

Dear Supervisor Rende:

This letter shall serve to confirm the basis of our agreement with the Town of North Castle for general legal services and for services rendered to any of the Special Districts or for special projects for which we may be given responsibility.

Our annual retainer for general legal services shall be Ninety Thousand and no/100 (\$90,000.00) Dollars per year payable in equal monthly installments of Seven Thousand Five Hundred (\$7,500.00) Dollars. The term general legal services is to include attendance at all regular and special meetings of the Town Board, Planning Board and the Zoning Board of Appeals. In addition, we shall coordinate the defense of Article 78 Special Proceedings filed against the municipality with insurance counsel and will review with the tax assessor those tax certiorari grievances filed against the Town by taxpayers claiming a reduction in their real estate tax assessment. Within the parameters of our retainer we also agree to be available daily for consultation with all Board members, consultants and with all municipal department heads and elected officials and for meetings at mutually convenient times. In addition, we will handle routine real estate matters for the municipality such as transfers of land, easements and rights of way and be responsible for the drafting of all municipal contracts, except employment agreements, on an as-needed basis.

Aside from those matters as outlined above, there may exist, from time to time, matters involving extraordinary services for which we would find it necessary to bill on a separate hourly basis. All such services requiring large blocks of our time would be agreed upon in advance with the Board and would be billed at the rate of Two Hundred Seventy-Five and no/100 (\$275.00) Dollars per hour, per attorney. Those services for which the Town may be reimbursed by an applicant or group of applicants will also be billed at the rate of Two Hundred Seventy-Five and no/100 (\$275.00) Dollars per hour, per attorney.

STEPHENS, BARONI, REILLY & LEWIS, LLP

Supervisor Joseph Rende
January 1, 2024
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In addition to all such services, we continue to serve as Special Counsel to the Town's special districts. As matters arise and are referred to us, we propose to render such services on an as needed basis at the rate of Two Hundred Seventy-Five and no/100 (\$275.00) Dollars per hour, per attorney, to be separately billed to the appropriate taxing entity.

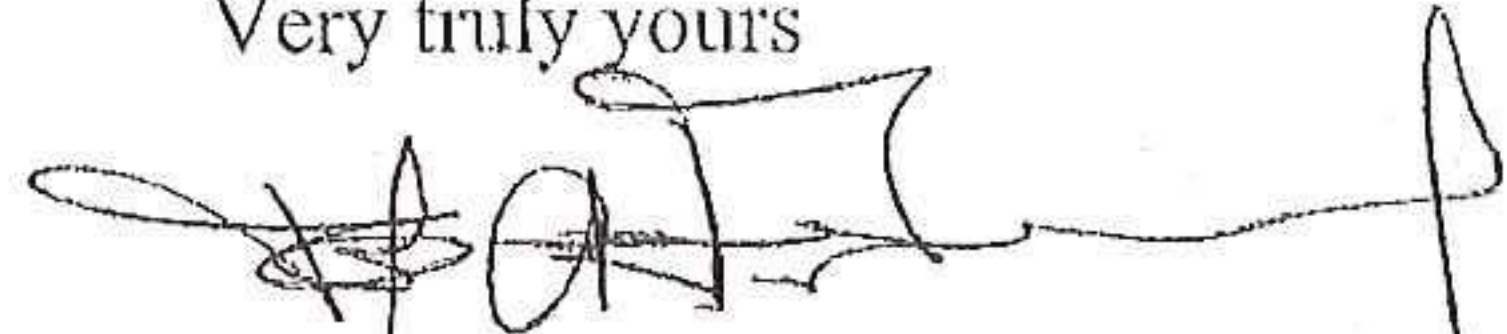
We envision the following delegation of responsibilities within our office for the coming calendar year.

- A. Town Board, Planning Board, Special Districts and general coordination - Roland A. Baroni Jr.
- B. Tax Certiorari Matters and General Litigation - Roland A. Baroni Jr., and Stephen R. Lewis.
- C. Zoning Board - Gerald D. Reilly, and Roland A. Baroni, Jr.

This agreement may be cancelled by either party at any time upon the giving of thirty (30) days prior written notice to the other party.

Please signify your acceptance of same as indicated below.

Very truly yours



Roland A. Baroni Jr.
For Stephens, Baroni, Reilly & Lewis, LLP

RABjr/dc

Agreed to and Approved:

TOWN OF NORTH CASTLE

By: 
Joseph Rende, Supervisor

Dated: January 11, 2024